



CHAPTER lxxxviii.

An Act to provide for the transfer of the undertaking of the Minehead Waterworks Company Limited to the Minehead Urban District Council and to confer further powers on the said Council with respect to the supply of water and for other purposes.

A.D. 1904.

[22nd July 1904.]

WHEREAS the district of Minehead in the county of Somerset is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Minehead Urban District Council (herein-after called "the Council"):

And whereas the Minehead Waterworks Company Limited (in this Act called "the company") were formed for the purpose of supplying water to the town of Minehead and the neighbourhood thereof and were duly registered under the Companies Acts 1862 and 1867 and are supplying water within the urban district of Minehead and also to certain places outside such district:

And whereas it is expedient that the undertaking of the company should be transferred to and vested in the Council in manner provided by this Act and that powers should be conferred upon the Council as herein-after provided:

And whereas it is expedient that the Council be authorised to borrow money for the purchase of the said undertaking and for the purchase of lands for and the extension and improvement of the undertaking:

And whereas an absolute majority of the whole number of the Council at a meeting held on the eleventh day of November one

A.D. 1904. — thousand nine hundred and three after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the *West Somerset Free Press* a local newspaper published and circulating in the district of the Council such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the general district fund or rate of the district:

And whereas such resolution was published twice in the said *West Somerset Free Press* and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the third day of February one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill for this Act in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the *Borough Funds Act 1903* have been observed:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the *Minehead Urban District Council Act 1904.*

Division of Act into Parts. 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Transfer of undertaking.
Part III.—Water.
Part IV.—Financial.
Part V.—Miscellaneous.

3. The provisions of Part III. of this Act shall not take effect until after the transfer of the undertaking of the company to the Council.

A.D. 1904.

—
Part III. not
to take effect
until transfer.
Incorporation
of Acts.

4. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking and except section 127 of the Lands Clauses Consolidation Act 1845):

The Waterworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts) but that Act shall be read and have effect as if the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” were omitted from section 44:

The Waterworks Clauses Act 1863.

5. The several words and expressions to which by the Acts wholly or partially incorporated with this Act meanings are assigned shall in this Act have the same respective meanings unless there is something in the subject or context repugnant to such construction. Provided that in the Acts wholly or partially incorporated with this Act for the purposes of this Act—

Interpreta-
tion.

The expressions “the undertakers” “the promoters of the undertaking” and “the company” mean the Council:

And in this Act unless the context otherwise requires—

The expression “the district” means the urban district of Minehead;

The expressions “the district fund” and “general district rate” mean respectively the district fund and the general district rate of the district;

The expression “the Council” means the urban district council of Minehead;

The expression “the company” means the Minehead Waterworks Company Limited;

The expression “the clerk” means the clerk to the Council.

A.D. 1904.

PART II.

TRANSFER OF UNDERTAKING.

Transfer of
undertaking
of company
to Council.

6. The company shall sell and the Council shall purchase the undertaking property rights powers and privileges of the company for the consideration and on the terms and conditions in this Act mentioned and for the purposes of such sale and of this Act the undertaking shall be deemed to include the waterworks of the company and all plant property and works connected therewith and all lands buildings easements rights powers authorities and privileges of or exerciseable by the company and all registers books plans and other documents relating to the company as the same exist on the date in this Act fixed for the completion of the transfer and herein-after referred to as "the date of transfer" and all other the estate real or personal of or on that day belonging to the company or to which the company is entitled except—

- (A) Moneys lying to the credit of the company at their bankers or in hand upon the date of transfer and all debts (other than water rates rents and charges payable in advance on that date in respect of the quarter ending next after such date) ;
- (B) All rights powers or privileges of the company relating or incidental to their capital or to their character as a company.

Considera-
tion for
transfer.

7. The consideration for such transfer shall be the payment by the Council to the company in cash of—

- (A) The sum of eleven thousand six hundred pounds ;
- (B) A further sum of two hundred and thirty-seven pounds two shillings and fivepence in respect of moneys advanced to the company by their bankers and expended by the company on capital account ;
- (c) A further sum equal to the total sum expended by the company in respect of outlay on capital account from the twenty-fourth day of October one thousand nine hundred and two down to and including the date of transfer together with any interest due from the company at the date of transfer to their bankers and bankers' charges in respect of moneys advanced to the company by their bankers for the purposes of such last-mentioned outlays on capital account including the said sum of two hundred and thirty-seven pounds two shillings and fivepence.

8. The Council shall pay to the company all costs and dis- A.D. 1904.
bursements of the company of and incidental to the agreement As to costs
for purchase of the undertaking and of and incidental to the pre- of company.
paration completion and carrying into effect of the transfer by this
Act authorised and all other costs and disbursements incurred
by the company in reference to the applying for obtaining and
passing of this Act except only any costs charges and expenses
of or incidental to the winding-up and dissolution of the company.

9. The transfer of the undertaking shall be completed on the Transfer and
twenty-fourth day of June the twenty-ninth day of September vesting of
the twenty-fourth day of December or the twenty-fifth day of undertaking
March which shall next happen after the date of the passing of of company
this Act Provided that if any such quarter day shall occur within in Council.
one month after the date of the passing of this Act the transfer
of the undertaking shall be completed on the next following
quarter day herein-before mentioned and such transfer shall be
evidenced by a deed which may be in the form set forth in the
schedule to this Act and the undertaking shall from that date by
virtue of this Act be transferred to and vested in the Council freed
and discharged as between the company and the Council from all
mortgage or other debts of the company and all liabilities up to
that date (including liabilities in respect of causes of action then
existing) and all liabilities contracts agreements and obligations
relating to the raising of money by the company entered into or
incurred by them and relating to or affecting the undertaking but
subject to any liabilities (including liabilities in respect of causes
of action) existing at the date of transfer in respect of obliga-
tions entered into by the company after the twenty-fourth day
of October one thousand nine hundred and two in respect of
works properly chargeable against capital and subject to all other
contracts engagements and obligations of the company in relation
to or affecting the undertaking and the company shall on the
said date give possession of the undertaking to the Council and
thenceforth the Council shall in their own name and for their
own benefit have and hold the undertaking Provided that the
Council shall indemnify the company from all actions suits claims
or demands whatsoever in respect of any of the liabilities contracts
engagements and obligations taken over by the Council as above
mentioned.

If through any cause whatever other than the wilful default
of the company the purchase money shall not be paid on the date

A.D. 1904. — of transfer the Council shall pay interest on the purchase moneys mentioned in the section of this Act the marginal note whereof is "Consideration for transfer" at the rate of four per cent. per annum until such purchase moneys are paid.

Provisions
incidental to
transfer.

10. With respect to the transfer of the undertaking the following provisions shall have effect (that is to say):—

- (1) The company shall until the date of transfer carry on and manage the undertaking according to their usual course of business and until such date shall maintain uphold and keep the works and property included in their undertaking in their present state and condition (reasonable wear and tear excepted) and shall continue to keep proper accounts:
- (2) The company shall be entitled to all rents profits book debts and sums of money accrued due in respect of the undertaking up to the date of transfer other than water rents rates and charges in respect of the quarter ending next after the date of transfer and shall discharge all liabilities and outgoings up to that date including all liabilities in respect of causes of action then existing except liabilities and causes of action in respect of works chargeable to capital and incurred since the twenty-fourth day of October one thousand nine hundred and two and shall be entitled also to the proportion of all rents profits and sums of money at the date of transfer accruing to the company but not at that date actually due or payable and which shall be attributable to a period prior to the date of transfer and such rents profits and sums of money shall be apportioned between the company and the Council accordingly and shall when due be recoverable by the Council who shall pay to the company the proportion of all rents profits and sums of money so recovered and attributable to a period prior to the date of transfer and all current rates taxes and outgoings shall similarly be apportioned between the company and the Council up to the date of transfer:
- (3) The company shall not without the previous consent in writing of the clerk borrow any money on mortgage of the undertaking:

(4) The company shall not make or enter into any liability contract agreement or obligation except such as may be in the ordinary course of the proper conduct of the affairs of the company and with the intention of benefiting the undertaking and until the company shall be finally wound up and dissolved the company shall have full access at all reasonable times to the registers books documents and accounts relative to the undertaking for the purpose of making up the accounts of the company and for all other reasonable purposes in relation to the winding-up of the affairs of the company.

A.D. 1904.

11. If at the date of transfer any action or proceeding or any cause of action or proceeding is pending or existing by or against or in favour of the company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but any such action or proceeding or cause of action or proceeding (other than one for the recovery of money due to the company on the date of transfer and which in accordance with the foregoing provisions of this Act is to belong to the company or in respect of any debt owing by the company on the date of transfer) may be continued prosecuted and enforced by or against or in favour of the Council as and when it might have been continued prosecuted and enforced by or against or in favour of the company if this Act had not been passed.

Pending actions &c. by or against company.

12. Subject to the provisions of this Act all conveyances deeds contracts agreements and other instruments affecting the company and in force at the date of transfer shall as from that date be as binding and of as full force and effect in every respect against or in favour of the Council and may be enforced as fully and effectually as if instead of the company the Council had been a party thereto and the Council shall indemnify the company from all actions suits claims or demands whatsoever in respect of the same.

Contracts of company to be binding on Council.

13. The Company shall indemnify and save harmless the Council against all actions suits claims or demands against the Council or the undertaking in respect of debts of the company or any liabilities in respect of causes of action existing at the date of transfer other than in respect of debts and liabilities in

Company to indemnify Council.

A.D. 1904. respect of works chargeable to capital which under the foregoing provisions of this Act it is expressly provided shall be undertaken by the Council.

Compensation to officers.

14. In addition to the sums which the Council shall pay to the company as purchase money for their undertaking the Council shall pay to the company as compensation to the officers of the company herein-after mentioned and who shall be in the service of the company at the date of transfer and whose services shall not be taken over by the Council the following sums by way of compensation for loss of employment:—

William Henry Allen Thorne the secretary sixty pounds ;

Mark Frederick Capron the turncock twenty-four pounds ;

Charles Lewis Uppington the collector thirty pounds ;

John McDonald the inspector twelve pounds ;

Messrs. Incedon Alms & Newbery the solicitors fifteen pounds
fifteen shillings :

And such sums may be paid to John Bond of Minehead in the county of Somerset chairman of the board of directors of the company whose receipt shall be a good discharge therefor Provided that if any such officer of the company shall be continued in his office by the Council and shall for any reason other than misconduct be discharged therefrom by the Council within a period of three years from the date of transfer the Council shall by way of compensation to such officer pay to him upon such discharge a sum at least equal to the amount of salary which he would have received during the remainder of such period of three years if he had continued to hold his office for the remainder of such period.

Books &c. to remain evidence.

15. All documents books and writings which if the transfer had not been made would have been receivable in evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same and the like matter for or against the Council.

Receipt for purchase money.

16. The receipt in writing of three of the directors of the company for the purchase money or consideration or any other sum of money to be paid to them by the Council shall effectually discharge the Council from liability for the sum so paid and from being concerned to see to the application thereof and from being answerable or accountable for the loss mis-application or non-application thereof and on such payment the company shall

forthwith proceed to take the necessary steps for a voluntary winding-up of their affairs. Provided that if from any cause the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt given to the Council by the cashier of the said bank for the money shall have the same effect as the receipt of the said three directors.

A.D. 1904.

PART III.

WATER.

17. The limits within which the Council are hereby authorised to supply water and to exercise all other rights powers and privileges relating to water shall be--

Water limits.

The district the parish of Minehead Without the Alcombe ward of the parish of Dunster and so much of the parishes of Wootton Courtney and Selworthy as lies within two hundred yards of any portion of the district or of the parish of Minehead Without (which limits are herein-after referred to as "the water limits") Provided that the Council shall not be under any obligation to provide a supply of water for or to any premises situate outside the district or to exercise any of the powers conferred by this Act or the Waterworks Clauses Acts 1847 and 1863 or either of them for such purpose save and except to or in respect of such premises as are at the date of the passing of this Act receiving a supply of water from the company and save and except to or in respect of any premises which the company would if this Act had not been passed have been bound to supply with water under or by virtue of any contract or agreement entered into by the company. Provided also that the water to be supplied by the Council within the water limits need not be supplied in any case at a level above that at which water can be supplied by gravitation from the existing reservoir of the company at Turnhill Sea in the district.

18. The Council may maintain renew enlarge extend and repair the reservoirs mains pipes and other waterworks for the time being belonging to or acquired by them by virtue of this Act or otherwise and may use and employ the same for the

Maintenance of
waterworks
by Council.

A.D. 1904. — purpose of taking intercepting and impounding and may take intercept and impound any water which the company are at the date of transfer entitled to take intercept or impound and may sell and supply water in accordance with the provisions of this Act and the Council may for the purpose of maintaining repairing renewing enlarging or extending their waterworks and of supplying water as aforesaid exercise outside the water limits within the parishes of Carhampton Withycombe Dunster Wootton Courtney and Selworthy all or any of the powers conferred upon undertakers by the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Additional
lands.

19. In addition to any lands of the company transferred to and vested in the Council in pursuance of this Act the Council may for the purposes of their water undertaking by agreement purchase take on lease and hold such lands as they may require not exceeding twenty acres and the Council may also by agreement purchase and take on lease for the purpose of protecting their water supply against nuisance encroachment or injury any further quantity of land not exceeding in the whole fifty acres and the Council may from time to time sell lease or exchange or otherwise dispose of any such lands in such manner and for such consideration and on such terms and conditions as they may think fit and in any such sale lease or exchange may reserve to themselves all or any water or water rights or other easements in relation thereto and make such sale lease or exchange subject to such conditions restrictions and provisions with respect to the carrying on of noxious trades or deposit of sewage as the Council think fit Provided that so long as any lands acquired by or leased to the Council under this section are held by them the Council shall not on any such lands create or permit any nuisance or erect on any such lands any buildings except such as are required for the purposes of or in connexion with their water undertaking.

Power to
appropriate
lands for
purposes of
Act.

20. The Council may with the consent of the Local Government Board and subject to such conditions as the Board may prescribe appropriate and use for the purposes of this Act but subject to the provisions (if any) under which such lands were acquired any lands from time to time vested in them.

Persons
under dis-
ability may

21. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the

provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

A.D. 1904.

grant easements &c.

22. The Council may on the application of the owner or occupier of any premises within the water limits abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up relay and renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing of such supply.

Power to lay pipes in streets not dedicated to public use.

23. The Council shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum herein-after specified (that is to say):—

Rates for supply of water for domestic purposes.

Where the rateable value of the premises so supplied with water shall not exceed five pounds at a rate not exceeding twopence per week:

Where such rateable value shall exceed five pounds and shall not exceed ten pounds at a rate not exceeding threepence per week:

Where such rateable value shall exceed ten pounds and shall not exceed twenty pounds at a rate per annum not exceeding ten per centum on such rateable value:

Where such rateable value shall exceed twenty pounds and shall not exceed thirty pounds at a rate per annum not exceeding eight and a half per centum on such rateable value:

Where such rateable value shall exceed thirty pounds and shall not exceed forty pounds at a rate per annum not exceeding eight per centum on such rateable value:

Where such rateable value shall exceed forty pounds and shall not exceed fifty pounds at a rate per annum not

A.D. 1904.

exceeding seven and a half per centum on such rateable value :

Where such rateable value shall exceed fifty pounds and shall not exceed sixty pounds at a rate per annum not exceeding seven per centum on such rateable value :

Where such rateable value shall exceed sixty pounds and shall not exceed seventy pounds at a rate per annum not exceeding six and a half per centum on such rateable value :

Where such rateable value shall exceed seventy pounds at a rate per annum not exceeding six per centum on such rateable value.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor. Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

In addition to the foregoing charges the Council may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the water limits a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding ten shillings per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Council may think fit. Such additional sums shall be paid quarterly in advance and be recoverable in all respects with and as the water rate. Nothing in this section shall entitle the Council in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum than they would be entitled to demand if the house or part thereof were of just sufficient rateable value to bring it within the next division of the said scale relating to premises of a higher rateable value whereon a lower rate per cent. is chargeable.

Supply for
stables.

24. Notwithstanding anything in the Waterworks Clauses Acts 1847 and 1863 a supply of water for domestic purposes shall not include a supply of water for stables or for washing carriages.

25. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

A.D. 1904.
 Rates payable by owners of small houses.

26. The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required Provided that the price to be charged by the Council for water supplied by measure under this section shall not exceed one shilling and sixpence per thousand gallons.

Supply to houses partly used for trade &c.

27. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Council not bound to supply several houses by one pipe.

28. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Notice of discontinuance.

29. — (1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 shall apply to all byelaws so made.

A.D. 1904.

(3) In the case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

Supply of
water for
other than
domestic
purposes by
measure.

30. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes Provided also that the price to be charged by the Council for water supplied by measure under this section shall not exceed one shilling and sixpence per thousand gallons.

Power to sell
or let meters.

31. The Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Council to let for hire any water fittings to any person supplied by them with water.

Notice to
Council of
connecting
or disconnect-
ing meters.

32. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring
meters &c.

33. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity

of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained : A.D. 1904.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

34. The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same. Power to supply materials.

35. The Council may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the water limits to any such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall Contracts for supplying water in bulk.

A.D. 1904. not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits.

Power to
local autho-
rity &c. to
supply water
in case
Council fails
to supply.

36. If at any time after the date of the passing of this Act the Council are not furnishing or prepared on demand to furnish a sufficient supply of water in any part of the district of any local authority within the water limits (other than the urban district of Minehead for the time being) the local authority of such district may provide a supply in the whole or any part of their district within the water limits not so sufficiently supplied with water by the Council as aforesaid in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Council as if in either case this Act had not passed.

If any difference shall arise between the Council and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled by an arbitrator to be appointed on the application of either party by the Local Government Board.

Sale of plant
outside dis-
trict.

37. If at any time after the date of the passing of this Act any local authority whose district is beyond the district but as to the whole or any part thereof within the water limits shall give not less than six months notice in writing to the Council of their desire to purchase such portion of the water undertaking and plant of the Council connected therewith as is contained within the district of any such local authority and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the water undertaking of the Council and plant connected therewith (except the reservoirs and all works constructed or used for the purpose of or rights of intercepting or impounding any waters and any lands held by the Council for or in connexion therewith and except the mains pipes works apparatus or other portion of the undertaking which shall be used or required for the purpose of supplying with water any other parts of the water limits or which shall be necessary for enabling the Council to fulfil their obligations

as to the supply of water outside such water limits and outside the district of any such local authority) then it shall not be lawful for the Council to oppose such application except as to the details thereof And if such powers of purchase and supply be granted the Council shall sell and such local authority shall purchase the portion of the water undertaking and plant of the Council connected therewith (except as aforesaid) within the district of such local authority at such price being a sum in gross and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts and any such purchase shall be deemed to be a purpose of the Public Health Act 1875 except so far as the same may be otherwise provided for by Parliament The Council shall apply the proceeds of any sale under this section in the same manner as they are required to apply moneys received on sales of land under this Act Provided that after the completion of such purchase all obligations on the part of the Council to supply water within the district of the purchasing authority shall cease and determine.

A.D. 1904.

PART IV.

FINANCIAL.

38. The Council may independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts herein-after mentioned (that is to say) :—

Power to
borrow.

- (1) For the purchase of the undertaking and for paying any sums payable by the Council to the company under this Act and for defraying the costs and expenses of the company and of the Council of and incident to such purchase or preliminary thereto and of and incident to the transfer of the undertaking to the Council (other than the costs of this Act) such sum as may be required :
- (2) For paying the costs and expenses of this Act as herein-after provided the sum requisite for that purpose :
- (3) And with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of this Act or for or in relation to the water undertaking of the Council.

A.D. 1904.

Security for
borrowed
money.

39. In order to secure the repayment of the moneys borrowed under this Act and the payment of the interest thereon the Council may mortgage or charge the revenue of the water undertaking of the Council and the district fund and general district rate or either of those securities.

Power to
borrow
under Local
Loans Act
1875.

40. The Council if they think fit may borrow the moneys which they are by this Act authorised to borrow or any part thereof under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures or annuity certificates or partly in one way and partly in another.

Any moneys borrowed in manner by this section authorised for the purposes of this Act shall be a charge upon and shall be paid out of the same funds and rates as they would be charged upon and paid out of if raised by mortgage under this Act and such funds and rates shall in each case be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

Every such loan shall be discharged within the respective periods prescribed by this Act and where any such loan is made repayable by means of a sinking fund the provisions of the section of this Act whereof the marginal note is "Regulations as to sinking fund" shall apply to such sinking fund in lieu of the provisions of section 15 of the Local Loans Act 1875.

Certain regu-
lations of
Public
Health Act
as to borrow-
ing not to
apply.

41. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Provisions of
Public Health
Act as to
mortgages to
apply.

42. Sections 236 to 239 of the Public Health Act 1875 shall extend and apply mutatis mutandis to mortgages granted under this Act.

Protection
of lenders
from inquiry.

43. A person lending money to the Council shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

44. The Council shall pay off all moneys borrowed by them under this Act within the respective periods following (herein-after referred to as "the prescribed period") (that is to say):—

A.D. 1904.

Periods for
payment off
of money
borrowed.

As to moneys borrowed for the purposes (1) herein-before mentioned forty years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purpose (2) herein-before mentioned five years from the date of the passing of this Act:

As to moneys borrowed with the approval of the Local Government Board such period not exceeding sixty years as they may think fit to sanction.

45. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund. The first payment by instalments or to a sinking fund shall be made within twelve months from the date of borrowing the money in respect of which such payment is to be made.

Mode of
payment off
of money
borrowed.

46. If the Council determine to pay off by means of a sinking fund any moneys borrowed under the authority of this Act the following regulations shall be observed:—

Regulations
as to sinking
fund.

The Council in every year shall appropriate and set apart out of the rate and revenue on the security of which such moneys shall have been borrowed such equal annual sums as will with the accumulations thereof by way of compound interest at a rate not exceeding three per centum per annum in this section referred to as "the prescribed rate" be sufficient to pay off the principal moneys borrowed (so far as the same are repayable by means of a sinking fund) within the prescribed period:

Provided as follows (that is to say):—

- (A) The yearly sums so to be appropriated and set apart shall be invested from time to time and accumulated in the way of compound interest by investing the same and the dividends interest and annual income thereof respectively in securities in which trustees are for the time being authorised to invest or in mortgages debenture stock or other securities (not

A.D. 1904.

being annuities or rentcharges or securities transferable by delivery) duly created and issued by any local authority as defined by the Local Loans Act 1875 but exclusive in each case of securities of the Council and any such investments may be from time to time varied or transposed Provided that if in any year the income arising from the investments of the sinking fund does not equal the prescribed rate any deficiency shall be made good out of the rate and revenue from which the annual payments to such fund are made and that if in any year such income exceeds the prescribed rate any excess may be applied in reduction of the annual payments which would otherwise be required to be made to such fund ;

- (B) The Council may at any time apply the whole or part of the sinking fund in or towards the repayment of the borrowed moneys for the repayment of which it was set apart in such order and manner as they deem proper Provided that in such case they pay into such sinking fund in each year afterwards and accumulate as herein-before prescribed until the whole of the borrowed moneys to which such sinking fund is applicable are discharged a sum equal to the interest produced by the sinking fund or part thereof so applied at the prescribed rate Provided also that whenever and so long as the value of the securities standing to the credit of the sinking fund taken at the market price of the day shall be equal to the amount of the borrowed moneys then outstanding for the repayment of which it was set aside the Council may in lieu of investing the yearly income of such fund apply the same in payment of interest on moneys in respect of which the fund was set aside and may during such periods discontinue the payment to the sinking fund of the yearly sums required to be paid thereto.

Return to
Local
Government
Board as to
repayment
of debt.

47. The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated

or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Local Government Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

A.D. 1904.

48. If the Council pay off any moneys borrowed by them under this Act otherwise than by instalments appropriations or annual repayments or by means of a sinking fund or out of the proceeds of the sale of land or other property or out of fines or

Power to
re-borrow.

A.D. 1904. — premiums on leases or out of other moneys received on capital account not being borrowed moneys they may from time to time re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Council with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

Council not
to regard
trusts.

49. The Council shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register or books of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Application
of borrowed
moneys.

50. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which they are respectively authorised to be borrowed and to which capital is properly applicable.

Expenses of
execution of
Act.

51. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such as are to be paid out of borrowed money or are otherwise provided for) shall be paid out of the district fund and general district rate.

Separate
account of
water under-
taking to be
kept.

52. The Council shall keep a separate account of their receipts and expenditure for waterworks purposes on capital and revenue account and the provisions of section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and the accounts of their committees officers and assistants under this Act.

Application
of water
revenue.

53. The Council shall apply all money from time to time received by them in respect of their water undertaking except money borrowed and money derived from the sale of surplus

lands or other moneys received on capital account as follows (that is to say):— A.D. 1904.

First In payment of the working and establishment expenses and cost of maintenance of their water undertaking :

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of their water undertaking :

Thirdly In providing the requisite appropriations instalments or payments to sinking funds in respect of moneys borrowed by the Council for the purposes of their water undertaking :

Fourthly In providing a reserve fund for their water undertaking if they think fit by setting aside such money as they from time to time think reasonable and investing the same and the resulting income thereof in Government securities or any securities in which trustees are or may be authorised to invest trust moneys (except securities of the Council and securities transferable by delivery) and accumulating the same at compound interest until the fund so formed amounts to a sum not exceeding ten per centum of the amount of the capital account of the water undertaking of the Council for the time being which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Council from their water undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of that undertaking or for payment of the costs of renewing any part of the undertaking and so that if that fund is at any time reduced it may thereafter be again restored to the amount aforesaid and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

Fifthly In improving and extending the water undertaking :

And the Council shall carry to the district fund any balance remaining in any year after retaining or setting aside such a sum as may in the opinion of the Council be required for carrying on their water undertaking and paying the current expenses connected therewith and shall also carry to the district fund the annual

A.D. 1904. — proceeds of the reserve fund when such fund amounts to the maximum amount herein-before prescribed.

As to deficiency in receipts.

54. Any deficiency in the revenues or receipts of the Council on account of their water undertaking shall be made good out of the district fund and the next general district rate or the rate next after such general district rate after the deficiency is ascertained shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund.

Proceeds of sale of surplus lands.

55. The Council shall apply any capital moneys received by them on the re-sale or exchange or by leasing of any lands under the powers of this Act in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board.

Inquiries by Local Government Board.

56.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

PART V.

MISCELLANEOUS.

Power to provide bands band-stands and seats and to let chairs &c.

57. It shall be lawful for the Council from time to time—

- (1) To place or authorise any person to place and maintain seats shelters and chairs in or on any park garden enclosure pleasure ground or other public place for the use of the public and if they think fit to charge or allow such person or persons to charge a reasonable sum for the use of the chairs ;

- (2) To provide place and maintain bandstands in or on any such park garden inclosure pleasure ground or other public place as the Council may deem suitable ; A.D. 1904.
- (3) To employ manage and regulate the performances of a public band of music to perform in any such park garden inclosure pleasure ground or other public place as the Council may from time to time prescribe or to pay or contribute towards the payment of a band of music Provided that the amount of such payments or contributions out of the district fund and general district rate for the purposes of this subsection shall not in any one year exceed the amount which would be produced by a rate of two-pence in the pound on the rateable value of the district assessable to the general district rate ;
- (4) To enclose an area in any park garden inclosure pleasure ground or other public place within which such bands shall play and to charge for admission within the said inclosure ;
- (5) To provide and sell or authorise any person or persons to sell programmes of any concert or performance which may from time to time be provided by the Council or with their sanction in or on such park garden inclosure pleasure ground or other public place ;
- (6) To make byelaws for regulating the use of chairs and the charges for the same for preventing injury or damage to such chairs seats shelters and bandstands and for securing good and orderly conduct during the playing of such band or during such musical performance and to do all such acts as may be necessary to carry these provisions into effect ;

Provided that this section shall not authorise the placing of a seat in any street so as to cause a substantial interference with the reasonable use thereof by the public or a nuisance to the owners or occupiers of premises in the vicinity thereof.

The moneys received by the Council under this section shall (after payment of the expenses chargeable to revenue incurred by the Council in pursuance of this section) be carried to the district fund and any deficiency shall be paid out of the district fund or general district rate.

A.D. 1904.

The provisions of sections 182 to 186 of the Public Health Act 1875 shall apply to all byelaws to be made under the provisions of this section.

Authentica-
tion and
service of
notices &c.

58. — (1) Where any notice or demand under this Act requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Recovery of
demands
under one
hundred
pounds.

59. Proceedings for the recovery of any demand not exceeding one hundred pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

Recovery of
penalties.

60. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Powers of
Act cumula-
tive.

61. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them by sections 51 (subsections (1) (2) and (3)) and sections 54 65 and 69 of the Public Health Act 1875 and the Council may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty) for the commission of the same offence.

Copy of
Act to be
registered.

62. The Council shall forward to the Registrar of Joint Stock Companies a printed copy of this Act and it shall be recorded by him and if such copy is not forwarded within three months

from the passing of this Act the Council shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the copy is omitted to be forwarded and every penalty shall be recoverable summarily. There shall be paid to the Registrar by the Council on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association. A.D. 1904.

63. The costs charges and expenses preliminary to and of and incidental to preparing applying for obtaining and passing of this Act (including the costs charges and expenses preliminary to and of and connected with the compliance with the provisions of the Borough Funds Acts 1872 and 1903 with respect to the Bill for this Act) as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys borrowed under the authority of this Act. Costs of Act.

A.D 1904. The SCHEDULE referred to in the foregoing Act.

FORM OF DEED OF TRANSFER OF WATER UNDERTAKING.

In pursuance of and subject to the provisions of the Minehead Urban District Council Act 1904 the Minehead Waterworks Company Limited do hereby in consideration of grant and convey to the urban district council of Minehead the undertaking as defined by the said Act to hold to them the said urban district council their successors and assigns and the said urban district council does hereby accept the same accordingly.

Printed by EYRE and SPOTTISWOODE.

FOR

T. DIGBY PRIGOT, Esq., C.B., the King's Printer of Acts of Parliament

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C. : or
OLIVER AND BOYD, EDINBURGH ; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.